



VICTORIA POLICE

LEARNER COPY

Police v PORTELLI

PROSECUTOR EYES ONLY

Graduate Certificate in Police Prosecution

Bail Moot Brief of Evidence

This brief of evidence is to be used for training purposes only.

For further information please contact:
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Bail Hearing Moot

General Guidelines for Prosecutors

These guidelines are to be read in conjunction with the following documents:

- Relevant preliminary remand brief of evidence
- Relevant specific preliminary brief instructions
- POL87115 Graduate Certificate in Police Prosecution – Learner Guide

General

- The Bail hearing moot will run for 60 minutes or less
- 15 minutes is allocated for the instructor to provide feedback to the prosecutor immediately following the completion of the bail hearing moot.
- No issue is to be made with the correctness of the issuing or listing of charges (including the lack of signatures on charges).
- The learner is to be assessed according to the specific observation tool for each bail brief. An example of the observation tool is provided in the evidence portfolio to enable learners to understand the assessment requirements.
- It is expected that the learner will complete all the actions of a prosecutor in dealing with the brief, including filling in the relevant sections on the bail brief.

Preliminary Matters

- The prosecutor will have preliminary discussion with defence to discuss the bail position.
- The prosecutor will announce their appearance and advise the court of the nature of the matter listed, specifically that bail is opposed.
- The prosecutor is required to state the legislative grounds for opposition of bail (shall refuse if unacceptable risk / show compelling reason / exceptional circumstances).

Prosecution Case

- The prosecutor will lead evidence from the informant in the matter.
- If the witness is a police officer they should swear themselves in. If the witness is a civilian there is no requirement for the magistrate to swear the witness in.
- Examination in chief should address grounds for opposition of bail including (but not limited to) how the applicant came into police custody, applicable Bail Act provisions, personal circumstances of the accused, and the strength of the prosecution case. The prosecutor may tender any exhibits, if applicable, during examination in chief.
- The magistrate should deal with any objections according to the law.
- Defence will cross examine the witness.
- The prosecutor should only re-examine the witness if it is necessary.

Defence Case

- Defence will lead evidence from one civilian witness during examination in chief.
- The defence instructions should be followed.
- The magistrate should deal with any objections according to the law.
- Defence should only re-examine the witness if it is necessary.

After close of Defence Case

- Defence counsel will make submissions on behalf of their client first.
- The prosecutor should then make submissions in relation to the application that addresses applicable law and any issues raised in the defence submission.

Assessment

- All moots are to be video/audio recorded.
- Requests for review are to be made in line with the procedure stipulated in the learner guide.

Preliminary Brief - Remand/Bail Application

Accused (PORTELLI) v Informant (KUJAN)

PERSONAL DETAILS OF THE ACCUSED

Occupation: _____ Marital Status: ☐ Married ☒ Separated ☐ De facto ☐ Single
 Dependants: No.: _____ Ages: _____
 Financial / Home Environment Details: Accused is unemployed and has no means to support himself. Habitual drug user. Lives in share house accommodation in Elsternwick.

IF BAIL IS OPPOSED

Is the accused of Aboriginal and/or Torres Strait Islander descent? ☒ Aboriginal ☐ Torres Strait Islander
☐ Both ☐ Neither ☐ Not stated/unknown
 Is the accused a child [Under 18 years]? ☐ Yes ☒ No
 Is the accused a vulnerable adult? [s.3AAAA] ☐ Yes ☒ No
 If Yes, is the matter to be heard by a Bail Justice? ☐ Yes ☐ No ☒ N/A
 If the accused is a child and does not have legal representation, has Youth Justice (BH) or YJBAS (AH) been notified? ☐ Yes ☐ No ☒ N/A
 If the accused is not of Aboriginal and/or Torres Strait Islander descent, a child or vulnerable adult, are they able to appear before the court via Audio Visual Link (AVL)? ☐ Yes ☐ No ☒ N/A
 After having had the opportunity to seek legal advice, does the accused consent to appear via AVL? ☐ Yes ☐ No ☒ N/A

PART A - CONSIDERATIONS FOR INFORMANT

[NOTE: The following information will assist the BDM in their assessment of mandatory requirements pursuant to the *Bail Act 1977*. Please refer to VPM - Bail and remand for further information.]

Family Violence Risks [s.5AAAA]

(1) Is there in force:-
 (a) a family violence intervention order made against the accused? OR ☐ Yes ☒ No
 (b) a family violence safety notice issued against the accused? OR ☐ Yes ☒ No
 (c) an order recognised under the National Domestic Violence Order [NDVO] Scheme made against the accused? ☐ Yes ☒ No
 Details: _____

Surrounding Circumstances Considerations [s.3AAA]

(2) Whether, if the accused were found guilty of the offence with which the accused is charged, it is likely
 (i) that the accused would be sentenced to a term of imprisonment; AND ☐ Yes ☐ No
 (ii) if so, that the time the accused would spend remanded in custody if bail is refused would exceed that term of imprisonment ☐ Yes ☐ No
 (3) Has the accused expressed support for [s.3AAA(m)]
 (a) the doing of a terrorist act? OR ☐ Yes ☒ No
 (b) a terrorist organisation? OR ☐ Yes ☒ No
 (c) the provision of resources to a terrorist organisation? ☐ Yes ☒ No
 Details: _____
 (4) Does the accused have, or have they had, an association with [s.3AAA(n)]
 (a) another person or a group that has expressed support of the kind referred to in Question 3 (a)-(c) above? OR ☐ Yes ☒ No
 (b) another person or a group that is directly or indirectly engaged in, preparing for, planning, assisting in or fostering the doing of a terrorist act? OR ☐ Yes ☒ No
 (c) a terrorist organisation? ☐ Yes ☒ No
 Details: _____

Preliminary Brief - Remand/Bail Application

Accused (PORTELLI) v Informant (KUJAN)

Surrounding Circumstances Considerations Continued [s.3AAA]

- (5) In regards to the **strength of evidence** against the accused [s.3AAA(b)]
- (a) has the accused made any **admissions**? ☒ Yes ☐ No
- Details:
- (b) is there any **identification evidence**? ☐ Yes ☐ No
- Details:
- (6) What is the **attitude or likely attitude of the alleged victim** to the accused being granted bail? [s.3AAA(j)]
- Details: The victim FINNERAN has not yet been asked for her view on the bail application.
- (7) If the accused is charged with causing injury to a person, what is the **extent of the victim's injuries**? [s.8B]
- Details:
- (8) Is there currently a **FVIO, FVSN or recognised DVO in force** against the accused? [s.3AAA(f)(i)(ii) **(iii)**] ☐ Yes ☒ No
- Details:
- (9) If the accused has been subject to previous bail conditions, what is the history of compliance with the conditions?
- Details:
- (10) Has the accused been charged with a **drug offence**? ☒ Yes ☐ No
- (a) what type of drug is involved? methyl amphetamine
- (b) what quantity is involved? 4.83g
- (c) has there been any drug analysis to date? ☐ Yes ☒ No
- Details:

Aboriginal Person Considerations [s.3A(1)]

[NOTE: Specific considerations applicable to all children, including children that are Aboriginal or Torres Strait Islander, are also listed within the next section. See s.3B below.]

- (11) Is there any information available regarding issues that might arise in relation to the person's history, culture or circumstances, including the following ☐ Yes ☐ No
- (i) the impact of any experience of trauma and intergenerational trauma including abuse, neglect, loss and family violence;
- Details:
- (ii) any experience in out of home care, including foster care and residential care;
- Details:
- (iii) any experience of social or economic disadvantage, including homelessness and unstable housing;
- Details:
- (iv) any ill health the person experiences, including mental illness;
- Details:
- (v) any disability the person has, including physical disability, intellectual disability and cognitive impairment;
- Details:
- (vi) any caring responsibilities the person has, including as the sole or primary parent of an Aboriginal child; AND
- Details:
- (vii) any other relevant cultural issue or obligation;
- Details:

Preliminary Brief - Remand/Bail Application

Accused (PORTELLI) v Informant (KUJAN)

Determination of bail in relation to a Child [s.3B]

(12) Information relating to the significant person (parents, guardians, etc.) in the child's life	☐ Yes	☒ No
Details:		
(13) Information relating to the living arrangements in the community, including safety and comfort of those arrangements	☐ Yes	☒ No
Details:		
(14) Information relating to:		
(i) the child's education, training or work	☐ Yes	☒ No
Details:		
(ii) the child's involvement in the child protection system	☐ Yes	☒ No
Details:		
(iii) if the child is from a culturally and linguistically diverse background	☐ Yes	☒ No
Details:		
(15) Any issues that arise:		
(i) in relation to ill health the child experiences, including mental illness	☐ Yes	☒ No
Details:		
(ii) in relation to any disability the child has, including physical disability, intellectual disability, cognitive impairment and developmental delay	☐ Yes	☒ No
Details:		

Preliminary Brief - Remand/Bail Application

Accused (PORTELLI) v Informant (KUJAN)

Step 1 - Exceptional Circumstances Test [s.4A]

A bail decision maker must refuse bail for a person accused of a Schedule 1 or other offence unless satisfied that exceptional circumstances exist that justify the grant of bail [s.4A(1A)].

Note: Only a court can grant bail to a person accused of a:

- a. Schedule 1 offence; OR
- b. Schedule 2 offence and the accused has a terrorism record; OR
- c. Schedule 2 offence and at the time they committed it they were either on bail, on summons, at large awaiting trial or sentence, on remand, subject to a CCO or a parole order for a Schedule 1 or Schedule 2 offence.

[NOTE: Where paragraph (c) applies, a police bail decision maker can still consider bail if the accused is a child, a vulnerable adult or an Aboriginal Person.]

(16) Has the accused been charged with an offence listed within <u>Schedule 1 of the Bail Act 1977</u>? Details:	☐ Yes ☐ No
(17) Has the accused committed a Schedule 2 offence and the accused has a terrorism record?[s.4AA (2)] Details:	☐ Yes ☐ No
(18) Has the accused committed a Schedule 2 offence that is alleged to have been committed by the accused? [s.4AA(2)(c)] (a) while on bail for any Schedule 1 or Schedule 2 offence? (b) while subject to a summons to answer a charge for any Schedule 1 or Schedule 2 offence? (c) while at large awaiting trial for any Schedule 1 or Schedule 2 offence? (d) while the accused was on remand for any Schedule 1 or Schedule 2 offence? (e) while the accused was at large awaiting sentence for a Schedule 1 or Schedule 2 offence? (f) during the period of a community correction order made in respect of the accused for any Schedule 1 or Schedule 2 offence or while otherwise serving a sentence for any such offence? (g) while released under a parole order made in respect of any Schedule 1 or Schedule 2 offence? Details:	☐ Yes ☐ No ☐ Yes ☐ No ☐ Yes ☐ No ☐ Yes ☐ No ☐ Yes ☐ No ☐ Yes ☐ No ☐ Yes ☐ No
(19) Has the accused been charged with an offence of conspiracy to commit, incitement to commit or attempting to commit an offence in circumstances set out in Question 18? Details:	☐ Yes ☒ No

Preliminary Brief - Remand/Bail Application

Accused (PORTELLI) v Informant (KUJAN)

Step 1 - Show Compelling Reasons Test [s.4C]

A bail decision maker must refuse bail for a person accused of a Schedule 2 offence, or any offence where the accused has a terrorism record, unless satisfied that a compelling reason exists that justifies the grant of bail.

Only a court can grant bail to a person who is already on two counts of bail for indictable offences and has committed any Schedule 2 offence - **[NOTE: A police bail decision maker can still grant bail if the accused is a child, a vulnerable adult or an Aboriginal Person.]**

- | | |
|--|--|
| (20) Has the accused been charged with an offence/s listed within <u>Schedule 2 of the Bail Act 1977</u> ?
Details: | ☐ Yes ☐ No |
| (21) Has the accused been charged with an offence of conspiracy to commit, incitement to commit or attempting to commit a Schedule 2 offence? [Schedule 2 -Item (31)]
Details: | ☐ Yes ☐ No |
| (22) Has the accused been charged with an offence that is neither a Schedule 1 or Schedule 2 offence but the accused has a terrorism record? [s.4AA(4)]
Details: | ☐ Yes ☐ No |

Step 2 - All Offences - Unacceptable Risk Test

[NOTE: Step 2 for both Exceptional Circumstances Test (s.4A) and Show Compelling Reason Test (s.4C). Also an All Offences Test (s.4E).]

- | | |
|--|--|
| (23) Is there an unacceptable risk that the accused, if granted bail would:- | |
| (i) Endanger the safety or welfare of any other person, whether by committing an offence that has that effect or by any other means?
Details: | ☐ Yes ☐ No |
| (ii) Interfere with witnesses?
Details: | ☐ Yes ☐ No |
| (iii) Obstruct the course of justice?
Details: | ☐ Yes ☐ No |
| (iv) Fail to appear on bail?
Details: | ☐ Yes ☐ No |

Preliminary Brief - Remand/Bail Application

Accused (PORTELLI) v Informant (KUJAN)

VICTIM NOTIFICATION

- | | |
|--|---|
| 1. Victim/s have been notified of the bail/remand application: | ☐ Yes ☒ No |
| 2. Victim/s have requested notification of outcome of application: | ☐ Yes ☒ No |
| 3. There is concern for the victim's safety: | ☐ Yes ☒ No |
| 4. Is the victim protected by an intervention order: | ☐ Yes ☒ No |

Prosecutor to complete in absence of Informant:If Yes to Q2 or Q3, Informant's OIC notified of outcome by email on *(time/date)*: _____ by *(Reg. No.)*: _____If Yes to Q3, Informant's OIC notified of outcome by telephone on *(time/date)*: _____ by *(Reg. No.)*: _____

Record of Police Bail Decision

Accused (PORTELLI) v Informant (KUJAN)

BAIL DECISION MAKER

PART B - POWER TO CONSIDER BAIL

Only a court may consider bail if:

- a. The accused has been charged with a Schedule 1 offence; OR
- b. The accused has been charged with a Schedule 2 offence and has a terrorism record; OR
- c. The accused is not a child, vulnerable adult, or Aboriginal person and has been charged with a Schedule 2 offence at the time they committed it they were either on bail, on summons, at large awaiting trial or sentence, on remand, subject to a CCO or a parole order for Schedule 1 or Schedule 2 offence; OR
- d. The accused is not a child, vulnerable adult, or Aboriginal person and has been charged with a Schedule 2 offence and is already on two counts of bail for indictable offences.

If any of the above circumstances apply, present to court as soon as practicable.

A police bail decision maker is prohibited from refusing bail if the accused is charged only with offences against the Summary Offences Act 1966 that are not listed in Schedule 3.

PART C - BAIL HEARING

The bail decision maker is responsible for ensuring that they have discharged their obligations in accordance with the *Bail Act 1977* and *VPM - Bail and remand*. A bail hearing must not occur before a police bail decision maker if in the circumstances, only a court may consider bail.

As the police bail decision maker, I am satisfied of the following:

(1) The bail test applicable to the accused is			
(i) Exceptional circumstances	☐ Yes	☐ No	☐ N/A
(ii) Show compelling reason	☐ Yes	☐ No	☐ N/A
(iii) Unacceptable risk	☐ Yes	☐ No	☐ N/A
(2) Having considered Part B of this form, I am empowered to consider bail	☐ Yes	☐ No	
• If No, present to court as soon as practicable			
(3) I am satisfied that the accused is charged only with offences against the Summary Offences Act 1966, and those offences are not listed in Schedule 3 [s.4AAA]. For this reason, I am prohibited from refusing bail	☐ Yes	☐ No	☐ N/A
(4) I have taken into account the following matters where required by the <i>Bail Act 1977</i> and <i>VPM - Bail and remand</i>			
(a) The surrounding circumstances of the accused (refer Part A Questions 2-10) [s.3AAA]	☐ Yes	☐ No	☐ N/A
(b) Considerations in relation to an Aboriginal person (refer Part A Question 11) [s.3A]	☐ Yes		☐ N/A
(i) Factors including overrepresentation of Aboriginal persons in the criminal justice system, the need to maintain and support connection to culture and the risk of harm and trauma of being in custody			
(c) Considerations in relation to children (refer Part A Questions 12-15) [s.3B]	☐ Yes		☐ N/A
(i) This includes all factors in which evidence is reasonably available or not at the time			
(d) Family violence risks (refer Part A Question 1) [s.5AAAA]	☐ Yes		☐ N/A
(e) When considering if the accused is an unacceptable risk, imposing bail conduct conditions on the accused [s.5AAA]	☐ Yes		☐ N/A
(5) I have considered the available evidence and authorise the charges and disposition	☐ Yes	☐ No	☐ N/A
(6) I have checked that the Informant has made appropriate victim notifications	☐ Yes	☐ No	☐ N/A
☐ BAIL GRANTED	☐ BAIL REFUSED		
(7) I have completed the 'Record of Police Bail Decision'	☐ Yes	☐ No	

Name: _____ Rank / Reg. No.: _____

Signature: _____ Date: _____

Record of Police Bail Decision

Accused (PORTELLI) v Informant (KUJAN)

☐ **BAIL GRANTED** [Complete Below & Bail Granted Details] ☐ **BAIL REFUSED** [Complete Below & Bail Refused Details]**BAIL GRANTED DETAILS**

- For any Schedule 2 offence you must complete a VP 497 Statement of Reasons for Granting Bail.
- If objection is taken to the amount of bail fixed or conditions of bail you must complete and serve on the accused a VP 467B Statement For Arrested Person who Objects to Amount or Conditions of Bail. Within ordinary court sitting hours bring the arrested person before the court. Outside ordinary court sitting hours call a Bail Justice.

Bailed to court: _____ Date: _____

BAIL REFUSED DETAILS

Date Bail Refused: _____ Time Bail Refused: _____

Reason/s
for Refusing Bail:**Proposed court details**

Court: _____

Court Date: _____ Court Time: _____

The Accused Is a child, vulnerable adult, Aboriginal Person or Person Arrested on an Enforcement Warrant:

- ☐ **Yes** => Accused **MUST** be brought before a Bail Justice as soon as **practicable**.
=> Complete and serve a Form VP 467.
- ☐ **No** => Refer to "All Other Persons" section below.

All other persons:If the Accused **CAN** be brought before the court within 48 Hours from the Date / Time Bail was refused:-

- Police can remand the accused in custody. No Bail Justice is required.
- Police must complete and serve a VP 467A Statement For a Person in Police Custody when Bail is Refused.

If the Accused **CANNOT** be brought before the court within 48 Hours from the Date / Time Bail was refused:-

- The Accused **MUST** be brought before a Bail Justice as soon as practicable.
- Police must complete and serve a VP 467A.

Bail Justice details

Date Bail Justice Called: _____ Time Called: _____

Name: _____ Time Attended: _____

Outcome: ☐ Bail Granted ☐ Bail Refused / Remand

Note: A copy of this "Record of Police Bail Decision" must be filed with the charges.

Preliminary Brief - Remand/Bail Application

Accused (PORTELLI) v Informant (KUJAN)

BAIL HEARING No.1

Heard at court/Other venue: _____ Date: _____

Was bail applied for: ☐ Yes ☐ NoWas the accused legally represented in this bail application: ☐ Yes ☐ No

Magistrate's/Bail Justice name: _____

Prosecutor's/Informant's name: _____

Defence counsel's name (if any): _____

Independent Third Person/Parent/Guardian/Interpreter: _____

REMAND DETAILS (if any):

Remanded to court: _____ Date: _____

Magistrate's reason
for refusing bail:

_____**BAIL DETAILS (if any):**

Bailed to court: _____ Date: _____

Conditions of Bail:

_____**BAIL HEARING No.2**

Heard at court/Other venue: _____ Date: _____

Was bail applied for: ☐ Yes ☐ NoWas the accused legally represented in this bail application: ☐ Yes ☐ No

Magistrate's/Bail Justice name: _____

Prosecutor's/Informant's name: _____

Defence counsel's name (if any): _____

Independent Third Person/Parent/Guardian/Interpreter: _____

REMAND DETAILS (if any):

Remanded to court: _____ Date: _____

Magistrate's reason
for refusing bail:

_____**BAIL DETAILS (if any):**

Bailed to court: _____ Date: _____

Conditions of Bail:

Preliminary Brief - Statement Made By Informant

Accused (PORTELLI) v Informant (KUJAN)

Accused				
Name	Family Name PORTELLI		Given Names Kyle	
	Sex M	Date of Birth 12/01/Y-45	Prior Convictions Yes	
Informant				
Name	Family Name KUJAN		Given Names David	
	Rank Detective Senior Constable			Reg. No. 11111
	Work Location Frankston Police Station			Telephone 50252201
Co-Accused				
Name	Family Name		Given Names	Sex
				Date of Birth
Orders / Applications				
Forfeiture / Disposal / Pecuniary Penalty Order				
Forfeiture Order required and form attached			☒ Yes	☐ No ☐ N/A
Application for Pecuniary Penalty Order (S.58 Confiscation Act 1997)			☐ Yes	☐ No ☒ N/A
Witness Costs / Restitution / Compensation				
Witness costs, restitution or compensation sought and form attached			☐ Yes	☐ No ☒ N/A
Forensic Procedures (Crimes Act 1958)				
Application for forensic sample and form attached - S.464ZFB or ZGF [Juvenile Only]			☐ Yes	☐ No ☒ N/A
Application for forensic sample and form attached - S.464ZF(2) or ZF(2AAA)			☐ Yes	☐ No ☒ N/A
Sex Offender Registration				
Proposed action against the accused and form attached			☐ Mandatory	☐ Discretionary ☒ N/A
Contravention of Suspended Sentence				
If found guilty accused contravenes a suspended sentence and charge attached			☐ Yes	☐ No ☒ N/A
Exclusion Order (Section 89DE Sentencing Act 1991)				
Application for Alcohol Exclusion Order sought and form attached			☐ Yes	☐ No ☒ N/A
Exclusion Order (Part 8A LCRA 1998)				
Application for an Exclusion Order sought and form attached			☐ Yes	☐ No ☒ N/A
Motor Vehicle Impound Orders (Road Safety Act 1986)				
Forfeiture order for motor vehicle and form attached - S.84U(1)			☐ Yes	☐ No ☒ N/A
Impoundment / immobilisation order and form attached - S.84U(1)			☐ Yes	☐ No ☒ N/A
Forfeiture order for substituted motor vehicle and form attached - S.84V(1)			☐ Yes	☐ No ☒ N/A
Impoundment / immobilisation order for substituted motor vehicle - S.84U(1)			☐ Yes	☐ No ☒ N/A
Immediate Permit / Licence Ban (Part 6B/6C Road Safety Act 1986)				
Accused permit / licence suspended or disqualified and notice attached (brief copy)			☐ Yes	☐ No ☒ N/A
Date suspension / disqualification commenced				
Does the victim want to provide a victim impact statement			☐ Yes	☐ No ☒ N/A
Victim impact statement attached			☐ Yes	☐ No ☒ N/A
Other (Specify)				
Note: Actual applications / orders are only attached to prosecution copy of the brief				

Preliminary Brief - Statement Made By Informant

Accused (PORTELLI) v Informant (KUJAN)

Statement of alleged facts

Description of alleged offence(s) with reference to supporting evidence. Where relevant provide a description of the background and consequences of the alleged offence.

The accused in this matter, Kyle PORTELLI, is a 45 year old aboriginal male.

The accused is currently unemployed and has no financial income, relying solely on his offending to support his lifestyle. The accused is a habitual user of methyl-amphetamine which often exacerbates his offending.

At the time of the current offending, the accused was on bail for charges of theft of motor vehicle, evade police, and recklessly expose emergency worker to risk by driving, stemming from an incident occurring 3 months ago. (Informant WADE)

Current matter

Last night at approx. 10pm, the victim, Ms Elizabeth FINNERAN, parked her Toyota Land Cruiser ABC-123 within the driveway of her address and stored the keys within the kitchen of the property.

At approximately 01:00AM TODAY, an unknown offender has gained access to the property via the rear laundry door. Whilst inside the offender has stolen the following items from the living room:

- an Apple iPad
- an X-Box series X
- Seiko brand watch

Total value estimated at \$1500.

The offender has then entered the kitchen and taken the keys to the Land Cruiser.

At approximately 02:30AM TODAY the accused was observed by police driving the stolen Land Cruiser erratically along Cranbourne Road Frankston.

Police activated their lights and sirens indicating for the accused to pull over. The accused accelerated and reached a speed of approximately 150km/h (detected via TUPMED). The posted speed limit along the stretch of Cranbourne Road is 80km/h.

Police abandoned their pursuit shortly thereafter but continued to patrol the area for the offender and vehicle.

At 2:37AM, police located the Land Cruiser abandoned in a nearby industrial estate, in New Street. Police observed the accused approximately 30 metres away in the industrial estate walking away at a fast rate, and recognised him as the driver of the stolen vehicle.

The accused was arrested and a subsequent search of the accused located a snap-lock bag containing white powder (4.83g) believed to be methamphetamine, in his jeans pocket. Police also found the accused's Samsung mobile phone in his front hoodie pocket. It was unlocked, and police observed a text message sent to it by a mobile number at 1:45AM which said "we have a deal thx", and one received from another unsaved number at 02:00AM saying "where u at? I've got the cash ready". A search of the vehicle located the iPad, X-box and Seiko watch in the back seat area.

The accused was conveyed to the Frankston Police Station where he denied being the driver of the vehicle.

OUTSTANDING MATTER

3 months ago the accused was observed by LSC Mark **WADE** driving erratically along High Street Frankston in a stolen Holden Commodore. Police activated their lights and sirens, however the accused sped away from police. Police set up a cordon on Bay Street South and managed to block the accused's path with their police vehicles. The accused attempted to drive around the police vehicles and in the process HAS collided with one of the vehicles at low speed causing minor damage.

The accused was arrested and bailed in relation to the matter returning to the Frankston Magistrates' Court in 2 weeks time.

Statement made by accused

Relevant explanations provided by accused including statements of admission, mitigation or remorse (include direct quotes where practicable)

"You guys are stitching me up a beauty"

Preliminary Brief - Statement Made By Informant

Accused (PORTELLI) v Informant (KUJAN)

Witness list

No.	Name	Evidence	Statement Obtained	Document Attached
1	Elizabeth FINNERAN	Victim - Will give evidence of aggravated burglary in which vehicle ABC-123 and iPad, X-Box and watch were stolen.	No	No
2	Leading Senior Constable Richard TRACEY	Police Witness - Will give evidence of being present during the arrest of the accused. Evidence of corroborating interview.	No	No
3	Detective Senior Constable David KUJAN	Informant - Will give evidence of observing the accused driving erratically, evidence of attempting to intercept accused. Evidence of locating and arresting accused. Evidence of locating methyl amphetamine in pocket of the accused.	No	No

Preliminary Brief - Statement Made By Informant

Accused (PORTELLI) v Informant (KUJAN)

Exhibit list

No.	Exhibit Description	Produced By	Exhibit Relevance	Police Possession
1	1 x snap lock bag weighing 4.83g containing methyl amphetamine	Detective Senior Constable David KUJAN	Located in jeans pocket of the accused	Yes
2	1 x photograph depicting stolen vehicle in industrial estate	Detective Senior Constable David KUJAN	Depicts the vehicle in situ when located by police	Yes
3	1 x photograph depicting stolen items located in interior of stolen vehicle.	Detective Senior Constable David KUJAN	Depicts the stolen items located in the vehicle.	Yes
4	1 x photograph depicting snap-lock bag located in jeans pocket of the accused	Detective Senior Constable David KUJAN	Depicts the snap-lock bag located on the accused.	Yes
5	1 x photograph depicting snap-lock bag on digital scales showing the weight to be 4.83g	Detective Senior Constable David KUJAN	Depicts the weight of the drugs in snap-lock bag.	Yes
6	Samsung mobile phone	Detective Senior Constable David KUJAN	Seized from accused after arrest. Contains message relevant to trafficking.	Yes
7	1 x DVD recorded interview	Detective Senior Constable David KUJAN	Record of interview conducted at Frankston police station.	

Preliminary Brief - Statement Made By Informant

Accused (PORTELLI) v Informant (KUJAN)

Acknowledgment		
I acknowledge that this statement is true and correct and I make it in the belief that a person making a false statement in the circumstances is liable to the penalties of perjury.		
Signature	Signature of person making acknowledgment David KUJAN Detective Senior Constable 11111	
Acknowledgment taken and signature witnessed by me at		
	Place	Date
		Time
Before(1):	Name and address in legible writing, typing or stamp	
(1) A person authorised under Section 38 of the Criminal Procedures Act 2009 to witness statements		

CHARGE - SHEET

CDEB / Police Brief copy

FV/SA Code: Not Applicable

Magistrates' Court Criminal Procedure Rules 2019 Form 1 Rule 13(a)

TO THE ACCUSED		Unsuitable Dates: Nil Unsuitable Dates	
Kyle PORTELLI 101 Holloway St, Elsternwick VIC Mobile Phone No.: 04123678 Email Address: made.up@gmail.com		Preferred Dates: Nil Preferred Dates	
		M ☒ F ☐ Co ☐ 12/01/Y-45	Date of Birth
You have been charged with an offence against the law. Read these pages to see what you must do		Registration No.	State VIC
MNI / JAID: 313131313		Licence No.	State VIC

Details of the charge against you	
What is the charge?	1 The accused at Frankston on today did steal 2017 Toyota Land cruiser being property belonging to Elizabeth FINNERAN and valued at \$22,000.. [2] Sub-Incident Number: Offence Code: 351A Offence Literal: Theft of Motor Vehicle

Under what law?	☒ State ☒ Act ☐ Other - Specify ☐ C'Vealth ☐ Reg	Act or Regulation No. Crimes Act No.6231/1958	Section/Clause (Full Ref.) 74
Type of Offence	☐ Summary Offence (You should go to Court) ☒ Indictable Offence (You must go to Court)		
Request for Committal Proceeding	☒ No ☐ Yes		
Is this an infringement offence?	☒ No ☐ Yes - see below		
	☐ Enforcement Review ☐ Enforcement Review -special circumstances ☐ Infringements Act 2006 s.40 ☐ Other:	If enforcement review, date of service by the Director, Fines Victoria:	
Are there more charges?	☐ No ☒ Yes - see "Continuation of Charges" attached		
Informant	Detective Senior Constable David KUJAN 11111		Phone No: 50252201
Agency and Address	Frankston Police Station CIU 15 Fletcher Rd, Frankston VIC. 3199		
Email	made.up@police.vic.gov.au		Fax 50252076
Informant Signature			Date
Charge Filed at	Frankston		Date

CONTINUATION OF CHARGES

CDEB / Police Brief copy

Magistrates' Court Criminal Procedure Rules 2019 Form 2 Rule 13(b)

Person Charged Kyle PORTELLI		Page No 1	
2 The accused at Frankston on today did steal an iPad, X-Box and Seiko watch being property belonging to Elizabeth FINNERAN and valued at \$1,500.			
[2] Sub-Incident Number:		Offence Code: 390A	
Offence Literal: Theft			
☒ State	☒ Act ☐ Other - Specify	Act or Regulation No. Crimes Act No.6231/1958	Section/Clause (Full Ref.) 74
☐ C'Vealth	☐ Reg		
☐ Summary Offence (You should go to Court but you must go if you are on bail)		☒ Indictable Offence (You must go to Court)	
Request for Committal Proceeding	☒ No ☐ Yes		
Is this an infringement offence?	☒ No ☐ Yes - see below		
	☐ Enforcement Review ☐ Enforcement Review -special circumstances		
	☐ Infringements Act 2006 s.40 ☐ Other:		
3 The accused at Frankston on today did dishonestly assist in the retention of goods by or on behalf of another, knowing the goods an iPad, X-Box and Seiko watch to be stolen goods.			
[2] Sub-Incident Number:		Offence Code: 339A	
Offence Literal: Handle/Receive/Retention Stolen Goods			
☒ State	☒ Act ☐ Other - Specify	Act or Regulation No. Crimes Act No.6231/1958	Section/Clause (Full Ref.) 88(1)
☐ C'Vealth	☐ Reg		
☐ Summary Offence (You should go to Court but you must go if you are on bail)		☒ Indictable Offence (You must go to Court)	
Request for Committal Proceeding	☒ No ☐ Yes		
Is this an infringement offence?	☒ No ☐ Yes -see below		
	☐ Enforcement Review ☐ Enforcement Review -special circumstances		
	☐ Infringements Act 2006 s.40 ☐ Other:		
Are there more charges?	☐ No ☒ Yes - see Page No. 2		
Informant	Detective Senior Constable David KUJAN 11111		
Agency and Address	Frankston Police Station CIU 15 Fletcher Rd, Frankston VIC. 3199		Phone 50252201
Informant Signature		Registrar Signature	
Charge filed at			Date
Follow the instructions as listed for VP Form 401 or 402, depending on the circumstances of use of this continuation of charges. 'Informant Signature' MUST appear on the 'To be filled at Court after service' copy of this form.			
If these Continuation of Charges are laid at a time subsequent to the submission of the original charges, then the following data fields MUST be completed:		MNI / JAID	
		Offender ID	
		Printer ID	R

CONTINUATION OF CHARGES

CDEB / Police Brief copy

Magistrates' Court Criminal Procedure Rules 2019 Form 2 Rule 13(b)

Person Charged Kyle PORTELLI Page No 2

- 4 The accused at Frankston today being the driver of a motor vehicle who knew that they had been given a direction to stop the motor vehicle by a police officer, did not stop the motor vehicle as soon as practicable and remain stopped until a police officer indicated that they may proceed.

[2] Sub-Incident Number: Offence Code: 749AUC

Offence Literal: Fail to Stop Vehicle on Police Direction

☒ State	☒ Act	☐ Other - Specify	Act or Regulation No. Road Safety Act No.127/1986	Section/Clause (Full Ref.) 64A(1)
☐ C'Vealth	☐ Reg			

☒ Summary Offence (You **should** go to Court but you **must** go if you are on bail) ☐ Indictable Offence (You **must** go to Court)Request for Committal Proceeding ☒ No ☐ YesIs this an infringement offence? ☒ No ☐ Yes - see below☐ Enforcement Review ☐ Enforcement Review -special circumstances
☐ Infringements Act 2006 s.40 ☐ Other:

- 5 The accused at Frankston on today did drive a motor vehicle at a speed that was dangerous to the public having regard to all the circumstances of the case.

[2] Sub-Incident Number: Offence Code: 724B

Offence Literal: Drive at a Speed Dangerous

☒ State	☒ Act	☐ Other - Specify	Act or Regulation No. Road Safety Act No.127/1986	Section/Clause (Full Ref.) 64(1)
☐ C'Vealth	☐ Reg			

☒ Summary Offence (You **should** go to Court but you **must** go if you are on bail) ☒ Indictable Offence (You **must** go to Court)Request for Committal Proceeding ☒ No ☐ YesIs this an infringement offence? ☒ No ☐ Yes -see below☐ Enforcement Review ☐ Enforcement Review -special circumstances
☐ Infringements Act 2006 s.40 ☐ Other:Are there more charges? ☐ No ☒ Yes - see Page No. 3

Informant Detective Senior Constable David KUJAN 11111

Agency and Address Frankston Police Station CIU 15 Fletcher Rd, Frankston VIC. 3199 Phone 50252201

Informant Signature Registrar Signature

Charge filed at Date

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MNI / JAID	
Offender ID	
Printer ID	R

CONTINUATION OF CHARGES

CDEB / Police Brief copy

Magistrates' Court Criminal Procedure Rules 2019 Form 2 Rule 13(b)

Person Charged Kyle PORTELLI Page No 3

6 The accused at Frankston on today did traffick a drug of dependence namely methylamphetamine.

[2] Sub-Incident Number: Offence Code: 658BP

Offence Literal: Traffick Methylamphetamine

☒ State ☒ Act ☐ Other - Specify☐ C'Vealth ☐ RegAct or Regulation No.
Drugs Poisons and Controlled
Substances Act No.9719/1981Section/Clause (Full Ref.)
71AC☐ Summary Offence (You **should** go to Court but you **must** go if you are on bail) ☒ Indictable Offence (You **must** go to Court)Request for Committal
Proceeding☒ No ☐ YesIs this an infringement
offence?☒ No ☐ Yes - see below☐ Enforcement Review☐ Enforcement Review -special circumstances☐ Infringements Act 2006 s.40 ☐ Other:**7** The accused at Frankston on today possessed a drug of dependence namely methylamphetamine.

[2] Sub-Incident Number: Offence Code: 618AC

Offence Literal: Possess Methyl Amphetamine

☒ State ☒ Act ☐ Other - Specify☐ C'Vealth ☐ RegAct or Regulation No.
Drugs Poisons and Controlled
Substances Act No.9719/1981Section/Clause (Full Ref.)
73☐ Summary Offence (You **should** go to Court but you **must** go if you are on bail) ☒ Indictable Offence (You **must** go to Court)Request for Committal
Proceeding☒ No ☐ YesIs this an infringement
offence?☒ No ☐ Yes -see below☐ Enforcement Review☐ Enforcement Review -special circumstances☐ Infringements Act 2006 s.40 ☐ Other:Are there more
charges?☒ No ☐ Yes

Informant Detective Senior Constable David KUJAN 11111

Agency and
Address

Frankston Police Station CIU 15 Fletcher Rd, Frankston VIC. 3199

Phone 50252201

Informant
SignatureRegistrar
Signature

Charge filed at

Date

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MNI / JAID

Offender ID

Printer ID

R

CONTINUATION OF CHARGES

CDEB / Police Brief copy

Magistrates' Court Criminal Procedure Rules 2019 Form 2 Rule 13(b)

Person Charged Kyle PORTELLI		Page No 4	
8 The accused at Frankston on TODAY did drive a motor vehicle on a highway namely New Street during a period of disqualification from obtaining an authorisation to drive a motor vehicle.			
[2] Sub-Incident Number:		Offence Code: 732A	
Offence Literal: Drive Whilst Disqualified			
☒ State	☒ Act	☐ Other - Specify	Act or Regulation No. Road Safety Act No.127/1986
☐ C'Vealth	☐ Reg		Section/Clause (Full Ref.) 30(1)
☒ Summary Offence (You should go to Court but you must go if you are on bail)		☐ Indictable Offence (You must go to Court)	
Request for Committal Proceeding	☐ No ☐ Yes		
Is this an infringement offence?	☐ No ☐ Yes - see below		
	☐ Enforcement Review ☐ Enforcement Review -special circumstances		
	☐ Infringements Act 2006 s.40 ☐ Other:		
[2] Sub-Incident Number:		Offence Code:	
Offence Literal:			
☐ State	☐ Act	☐ Other - Specify	Act or Regulation No.
☐ C'Vealth	☐ Reg		Section/Clause (Full Ref.)
☐ Summary Offence (You should go to Court but you must go if you are on bail)		☐ Indictable Offence (You must go to Court)	
Request for Committal Proceeding	☐ No ☐ Yes		
Is this an infringement offence?	☐ No ☐ Yes -see below		
	☐ Enforcement Review ☐ Enforcement Review -special circumstances		
	☐ Infringements Act 2006 s.40 ☐ Other:		
Are there more charges?	☒ No ☐ Yes		
Informant	Detective Senior Constable David KUJAN 11111		
Agency and Address	Frankston Police Station CIU 15 Fletcher Road, Frankston VIC. 3199		Phone 50252201
Informant Signature		Registrar Signature	
Charge filed at			Date
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		Offender ID	
		Printer ID R	

CERTIFIED EXTRACT

The Magistrates' Court of Victoria at **FRANKSTON**
in the register on the **3 MONTHS AGO**

made the following entries

Case Number Charge Number	C987654321 1	
Informant, Plaintiff, Complainant or Applicant	WADE, Mark LSC- FRANKSTON HWP	
Accused / Respondent	PORTELLI, KYLE	D.O.B: 12/01/Y-45
How before the Court	CHARGE	Fees:
Nature of Charge or Civil Proceeding	Accused at FRANKSTON On 3 MONTHS AGO did commit a breach of Crimes Act 317AE Recklessly expose emergency worker to risk by driving.	

COURT ORDER

*Remanded to FRANKSTON MAGISTRATES' COURT on [in two weeks from today] 9:30am Bail
fixed in the Accused's own undertaking*

R H JUSTICE
MAGISTRATE

Remarks *Reasons for bail - Delay to trial, applicant an acceptable risk*

I am a registrar of the Magistrates' Court of Victoria and I certify that in my opinion this information is a true extract from the register of the court at the abovementioned location.

Dated at FRANKSTON

on **3 MONTHS AGO**

REGISTRAR OF THE MAGISTRATES' COURT









* TRAINING - for training purposes only. References to real people or places is unintentional *

CRIMINAL HISTORY FOR

Justice Accused Id: 98765432

Name: Kyle PORTELLI

Dob: 12/01/N-45

Age: 45

Sex: MALE

COURT	DATE	DEGREE	CHARGE	COUNT	RESULT
MELBOURNE MAGISTRATES	12/12/N-1		Driving in a manner dangerous	2	Community Corrections Order for 12 months. The accused is required to attend the FRANKSTON COMMUNITY CORRECTIONS CENTRE by 4.00PM on 13/12/N-1. Order commences with the following conditions: To perform 50 HOURS of unpaid community work over 12 MONTHS. 50 hours may be credited as treatment and rehabilitation. Licence cancelled and disqualified for 12 months.

MELBOURNE
MAGISTRATES

3/6/N-2

Possess drug of dependence

Adjourned Undertaking
for a period of 12
months. Without
Conviction.
To undergo treatment
as directed by
forensicare.

** END OF REPORT *